ILLUSTRATIVE ACADEMIC MATERIAL - FICTIONAL
Aarav Foods Pvt. Ltd. v. Sunrise Retail Pvt. Ltd. (fictional)
Internal matter ref. AF/TM/2026/01 (illustrative)

CEASE-AND-DESIST NOTICE (DRAFT)

2 March 2026. By e-mail and registered post (illustrative).

To: Sunrise Retail Pvt. Ltd., Sector 44, Gurugram, Haryana.

Subject: Infringement of the trade mark MILLETTA - cease and desist.

1. We act for Aarav Foods Pvt. Ltd. (our client). Our client has sold baked millet snacks under the mark MILLETTA since 1 August 2019 and states that the mark is registered in Class 30.

2. Our client has learned that you are selling baked millet crisps under the mark MILLETO in packs coloured yellow with a green lower band, in your Sunrise Fresh stores in Delhi and elsewhere in the NCR.

3. MILLETO differs from MILLETTA only in its ending. Used for identical goods, sold to the same shoppers in a similar get-up, it is likely to cause confusion. Our client has already received complaints from shoppers who bought MILLETO believing it to be MILLETTA.

4. We therefore call upon you, within 14 days of this notice, that is by 16 March 2026: (a) to stop making, selling and advertising any goods under the mark MILLETO or any mark similar to MILLETTA; (b) to withdraw existing stock; (c) to disclose your sales of MILLETO to date; and (d) to give a written undertaking to that effect.

5. If you do not comply, our client reserves the right to bring proceedings, including an application for an interim injunction, without further notice.

Advocates for Aarav Foods Pvt. Ltd. (illustrative; unsigned demonstration draft)